

1 HOUSE JOINT RESOLUTION NO. 5

2 INTRODUCED BY S. KLAKKEN, M. NIKOLAKAKOS, M. VINTON, S. KELLY, A. NICASTRO, G.
3 OVERSTREET, T. SHARP, E. BYRNE, C. SCHOMER, V. MOORE, C. COCHRAN, E. TILLEMAN, D. BEDEY,
4 J. ELLSWORTH, S. GIST, A. REGIER, C. SPRUNGER, C. GLIMM, B. LER, G. OBLANDER, J. ETCHART, B.
5 BARKER, L. BREWSTER, N. DURAM, J. ESP, G. HERTZ, D. LENZ, T. MCGILLVRAY, B. MERCER, G.
6 NIKOLAKAKOS, M. NOLAND, K. BOGNER

7
8 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
9 MONTANA APPLYING FOR A CONVENTION OF THE STATES UNDER ARTICLE V OF THE
10 CONSTITUTION OF THE UNITED STATES.

11
12 WHEREAS, the founders of our Constitution empowered state legislators to be guardians of liberty
13 against future abuses of power by the federal government; and

14 WHEREAS, the federal government has created a crushing national debt through improper and
15 imprudent spending; and

16 WHEREAS, the federal government has invaded the legitimate roles of the states through the
17 manipulative process of federal mandates, most of which are unfunded to a great extent; and

18 WHEREAS, the federal government has ceased to live under a proper interpretation of the Constitution
19 of the United States; and

20 WHEREAS, it is the solemn duty of the states to protect the liberty of our people -- particularly for the
21 generations to come -- by proposing amendments to the Constitution of the United States through a convention
22 of the states under Article V for the purpose of restraining these and related abuses of power.

23
24 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF
25 THE STATE OF MONTANA:

26 Section 1. The Legislature of the State of Montana hereby applies to Congress, under the
27 provisions of Article V of the Constitution of the United States, for the calling of a convention of the states
28 limited to proposing amendments to the Constitution of the United States that impose fiscal restraints on the

1 federal government, limit the power and jurisdiction of the federal government, and limit the terms of office for
2 its officials and for members of Congress.

3 Section 2. The secretary of state is hereby directed to transmit copies of this application to the
4 President and Secretary of the United States Senate and to the Speaker and Clerk of the United States House
5 of Representatives and to the members of the United States Senate and the United States House of
6 Representatives from this State and also to transmit copies of this application to the presiding officers of each
7 of the legislative houses in the several states, requesting their cooperation.

8 Section 3. This application constitutes a continuing application in accordance with Article V of the
9 Constitution of the United States until the legislatures of at least two-thirds of the several states have made
10 applications on the same subject.

11 - END -